

Non-Disclosure Agreement

Employee Confidentiality Agreement

WHEREAS, the Employee is or will be employed by Acme Corporation (the "Company") and will have access to certain proprietary and confidential information in the course of such employment; and WHEREAS, the Company desires to protect its confidential information and trade secrets from unauthorized disclosure; NOW, THEREFORE, in consideration of the Employee's employment and continued access to Confidential Information, the parties agree as follows:

ARTICLE I — PARTIES

Employee Name

Position

Department

Company

Effective Date

ARTICLE II — DEFINITION OF CONFIDENTIAL INFORMATION

For purposes of this Agreement, "Confidential Information" shall include, but not be limited to: trade secrets, proprietary data, source code, software architecture, algorithms, client and customer lists, business strategies, financial projections, pricing models, marketing plans, product roadmaps, personnel records, vendor agreements, and any other information designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

ARTICLE III — OBLIGATIONS OF THE EMPLOYEE

The Employee agrees to hold all Confidential Information in strict confidence and shall not, without the prior written consent of the Company, disclose, publish, or otherwise disseminate any Confidential Information to any third party. The Employee shall use Confidential Information solely for the purpose of performing duties on behalf of the Company. Upon termination of employment or upon request by the Company, the Employee shall promptly return or destroy all materials containing Confidential Information in their possession.

ARTICLE IV — EXCEPTIONS

The obligations set forth herein shall not apply to information that:

- (a) is or becomes publicly available through no fault of the Employee;

- (b) was in the Employee's possession prior to disclosure by the Company, as demonstrated by contemporaneous written records;
- (c) is independently developed by the Employee without use of or reference to the Company's Confidential Information; or
- (d) is disclosed pursuant to a valid order of a court or governmental agency, provided that the Employee gives prompt written notice to the Company of such requirement prior to disclosure.

ARTICLE V — TERM AND SURVIVAL

This Agreement shall remain in effect during the Employee's period of employment and shall survive termination of employment for a period of two (2) years thereafter, regardless of the reason for termination. The obligations regarding trade secrets shall continue for as long as such information constitutes a trade secret under applicable law.

ARTICLE VI — REMEDIES

The Employee acknowledges that any breach of this Agreement may cause irreparable harm to the Company for which monetary damages would be an inadequate remedy. Accordingly, the Company shall be entitled to seek injunctive relief in addition to any other remedies available at law or in equity.

Employee Signature

Date

Company Representative

Date